

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Samuel Ross	Team: Squad #09	CCRB Case #: 202105004	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Thursday, 06/10/2021 4:00 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 12/10/2022	Precinct: 30		
Date/Time CV Reported Tue, 08/10/2021 5:00 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 08/23/2021 11:08 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Avery Jennings	28198	944092	030 PCT
2. POF Ana Ruedaguerrero	22841	970165	030 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Avery Jennings	Abuse: Police Officer Avery Jennings did not obtain medical treatment for § 87(2)(b)	A . Unfounded
B . POF Ana Ruedaguerrero	Abuse: Police Officer Ana Ruedaguerrero did not obtain medical treatment for § 87(2)(b)	B . Unfounded
C . POM Avery Jennings	Abuse: Police Officer Avery Jennings entered § 87(2)(b) in Manhattan.	C . Exonerated
D . POF Ana Ruedaguerrero	Abuse: Police Officer Ana Ruedaguerrero entered § 87(2)(b) in Manhattan.	D . Exonerated

Case Summary

§ 87(2)(b) filed this complaint with IAB via telephone on August 10, 2021, generating original log #21-17677. Spin-off log #21-18154 was then forwarded to the CCRB, where it was received on August 23, 2021.

On June 10, 2021, at approximately 4:00 PM, PO Avery Jennings and PO Ana Ruedaguerrero of the 30th Precinct responded to § 87(2)(b) in Manhattan, where § 87(2)(b) resides in apt. #§ 87(2)(b). The officers responded to § 87(2)(b)'s report of a dispute with a neighbor and met with § 87(2)(b) in the lobby. PO Jennings and PO Ruedaguerrero allegedly refused to obtain medical treatment for § 87(2)(b) (**Allegations A and B: Abuse of Authority, Unfounded**). The officers then accompanied § 87(2)(b) to her apartment, which they entered, allegedly without her consent (**Allegations C and D: Abuse of Authority, Exonerated**). The officers departed without making any arrest or issuing any summons.

The investigation obtained BWC video recorded by PO Jennings and PO Ruedaguerrero.

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Avery Jennings did not obtain medical treatment for § 87(2)(b)

Allegation (B) Abuse of Authority: Police Officer Ana Ruedaguerrero did not obtain medical treatment for § 87(2)(b)

§ 87(2)(b) stated that when she met with PO Jennings and PO Ruedaguerrero in the lobby, she informed them that she felt unwell. § 87(2)(b) is diagnosed with leukemia, which causes high blood pressure when she becomes upset. She felt nauseous, she was shaking, she developed a headache, and she felt dizzy. She asked the officers to call for an ambulance, but PO Jennings responded, “Why should I call an ambulance? You can’t call an ambulance for yourself?” § 87(2)(b) said that she was sick and asked several more times for an ambulance. However, the officers still did not call for an ambulance. Finally, PO Jennings saw that § 87(2)(b) was unsteady on her feet, he agreed to call an ambulance for her. § 87(2)(b) heard him say, “Do you have a car?” She did not know if he was speaking to his partner, or using a phone, or speaking into a radio. She did not know what he meant by this or to whom he was speaking. She did not think he was calling for an ambulance. He did not ask for a “bus.”

§ 87(2)(b) then told the officers that she wanted to lie down in her apartment, and they accompanied her upstairs. As she waited with the officers, PO Jennings, at the door, asked her repeatedly, “Are you feeling better?” He seemed anxious to leave. § 87(2)(b) then asked the officers to leave, and they departed. An ambulance never arrived. § 87(2)(b) did not know whether PO Jennings had actually called for an ambulance. She suspected that he had not.

PO Jennings’ BWC video reveals that the officers called for an ambulance and cancelled the request for EMS at § 87(2)(b)'s instruction (Board Review 01). At 1 minutes 3 seconds, in the lobby, § 87(2)(b) says, “And you didn’t want to call the ambulance.” PO Jennings responds, “I called the ambulance. Don’t start changing the story now. I called the ambulance for you.” The officers then go upstairs and follow § 87(2)(b) into her apartment (addressed below in the analyses of Allegations C and D). At 6 minutes 16 seconds, PO Jennings tells § 87(2)(b) to sit down and relax while they wait for EMS to respond. Via radio, PO Jennings then asks the dispatcher to inform EMS that they are in apartment #§ 87(2)(b). At the 20 minute 20 second mark, § 87(2)(b) says that she is feeling better. PO Jennings asks if she wants to wait for the ambulance. At

21 minutes 45 seconds, via radio, PO Jennings asks the dispatcher for EMS's arrival time. At 23 minutes, PO Jennings asks if § 87(2)(b) wants to wait for EMS or to cancel the request for EMS. § 87(2)(b) responds, "Cancel EMS." PO Jennings advises § 87(2)(b) to call 911 if she feels unwell after they leave. The officers then depart.

§ 87(2)(g)

It is therefore recommended that **Allegations A and B** be closed as **unfounded**.

Allegation (C) Abuse of Authority: Police Officer Avery Jennings entered § 87(2)(b) in Manhattan.

Allegation (D) Abuse of Authority: Police Officer Ana Ruedaguerrero entered § 87(2)(b) in Manhattan.

§ 87(2)(b) stated that from her apartment window, she could see out onto § 87(2)(b). She saw a marked police vehicle across the street, but officers did not exit the vehicle and enter her building for 15 to 20 minutes. Subsequently, after the officers met with § 87(2)(b) in the lobby, they escorted her upstairs and waited at her apartment door while she lay on the couch. § 87(2)(b) complained to the officers about their arrival time and said that she had seen them wait 20 minutes before entering her building. When § 87(2)(b) said this, PO Jennings entered the apartment. He did not ask permission to do so. He crossed the apartment to the window facing § 87(2)(b) and looked out of the window, as if to confirm that § 87(2)(b) could see where the officers' vehicle was parked outside. PO Jennings never clarified why he entered the apartment. PO Jennings then returned to the apartment door. He was inside of the apartment for less than one minute.

PO Jennings' BWC video reveals that both officers entered § 87(2)(b)'s apartment, and that § 87(2)(b) allowed them inside (Board Review 01). At 5 minutes 50 seconds, § 87(2)(b) and the officers come to her apartment door. § 87(2)(b) opens the door, turns her back to the officers, and steps inside, leaving the door open behind her. As the officers follow her inside, she apologizes for the messy state of the apartment. She then sits on the couch and converses with the officers while they wait for EMS to arrive. The officers wait just inside § 87(2)(b)'s apartment door. At 20 minutes 55 seconds, sirens are audible on the street outside. PO Jennings points toward the window and says, "Let's see if that's them." He walks to the window, and § 87(2)(b) again apologizes for the state of the apartment. He looks outside and then returns to PO Ruedaguerrero near the apartment door.

According to the ruling in *People v. Long*, 124 A.D.2d 1016 (1986), in absence of a warrant or exigent circumstances, officers may enter a home only with an occupant's consent. Additionally, where there are no threats or coercive behavior by the police, and a civilian's cooperative behavior is evidence of voluntary consent, officers may make lawful entry into a home. In absence of specific words of consent, a civilian's consent can be inferred from their conduct, i.e., words, deeds and gestures in admitting police officers into a private dwelling (Board Review 02).

§ 87(2)(g)

it is recommended that **Allegations C and D** be closed as **exonerated**.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (Board Review 03).
- PO Jennings has been a member of service for 14 years and has been a subject in four other CCRB complaints with five allegations, of which one was substantiated:
 - Case #200903936 involved a substantiated allegation of refusal to provide name/shield number. The NYPD imposed Command Discipline B.
- PO Ruedaguerrero has been a member of the NYPD for less than one year and this is the first CCRB complaint to which she has been a subject.

Mediation, Civil, and Criminal Histories

- § 87(2)(g)
- On September 20, 2021, a request was submitted to the Office of the Comptroller for any Notice of Claim filed regarding this incident. As of the writing of this report no response has yet been received.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad: 9

Investigator: Samuel Ross Inv. Samuel Ross 09/20/2021
 Signature Print Title & Name Date

Squad Leader: Monique West IM Monique West 11/03/2021
 Signature Print Title & Name Date

Reviewer: _____ _____ _____
 Signature Print Title & Name Date